

# Sarita Kapil vs Rajesh Kumar Kapil on 27 March, 2024

**Bench: M.S. Ramachandra Rao, Jyotsna Rewal Dua**

HON'BLE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA .

CMP(M) No. 873/2023 in

Sarita Kapil

FA0(FC) No.11/2024

Decided on: 27.03.2024

....Appellant

Versus

Rajesh Kumar Kapil

....Respondent

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The Hon'ble Mr. Justice M.S. Ramachandra Rao, Chief Justice. The Hon'ble Ms. Justice Jyotsna Rewal Dua, Judge. Whether approved for reporting?1 For the appellant : Mr. Adarsh K. Vashishta, Advocate.

For the respondent : Mr. Atharv Sharma, Advocate.

M.S. Ramachandra Rao (Chief Justice)(Oral) CMP(M) no. 873/2023 This application is filed seeking condonation of delay of 93 days in filing the appeal. It is stated that the applicant was mistaken as to the time for filing the appeal and presumed that it was three months, though it was only 30 days.

Though, the respondent has filed reply opposing the condonation of delay, having regard to the fact that there appears to be a bona-fide mistake in computing the period of limitation for filing the Whether reporters of the local papers may be allowed to see the judgment?

appeal on the part of the applicant, we are satisfied that sufficient cause has been shown for condoning the said period of delay.

Accordingly, the application is allowed, and disposed of.

This appeal is preferred by the appellant challenging judgment dt. 04.02.2023 in HMA Petition no.51/2018 RBT 37 of 2020, passed by the Principal Judge, Family Court, Hamirpur, H.P. allowing the application filed by the respondent for Restitution of Conjugal Rights under Section 9 of the Hindu Marriage Act, 1955.

The case of the respondent -husband in the HMOP

2) The said petition had been filed by the respondent against the appellant contending that the parties had been married on 11.07.2006, that they have a son, who was aged 10 years at the time when the petition was filed; that the appellant had amicably lived with the respondent for about 8 years from the marriage; but thereafter, she treated him cruelly and callously, and had also withdrawn from the society of the respondent, and physically left the matrimonial home in December 2015 without any reasonable cause and justification.

3) It is alleged that the appellant was residing with her friend one Pooja Verma, who was serving as Music Teacher at DAV Public Senior Secondary School Greyoh, P.O. Khoda, Tehsil Sarkaghat, District Mandi, H.P. It is alleged that in spite of several .

attempts made by the respondent to bring the appellant back to matrimonial home, she refused to join his company.

The case of the appellant-wife in the HMOP

4) The appellant filed a reply denying the allegations of the respondent and alleging that the respondent had physically & mentally tortured her and ousted her from the matrimonial home; and that he could not be permitted to take benefit of his own wrongs.

5) She alleged that the respondent and his mother had subjected her to cruelty and she had even filed a complaint under the Protection of Women from Domestic Violence Act, 2005 and the Court had awarded maintenance in her favour, but the respondent did not comply with the said direction.

6) It is also alleged that the respondent had prevented the appellant from taking her personal articles including a Scooty and had instead pressurized her to take the articles, which were not required by her.

7) She denied residing with Pooja Verma. She alleged that the respondent had harassed her on the ground that she had brought in-

sufficient dowry and she was not beautiful. She also alleged that the respondent had circulated some objectionable statements about the .

character and lifestyle of the appellant and Pooja Verma, on social media platform.

#### Rejoinder of the husband

8) Rejoinder was filed by the respondent denying the said allegations and stating that he had consented to pay maintenance @ Rs.8,000/- per month to the appellant on the very first day of appearance in the proceedings under the Domestic Violence Act. He also stated that he had moved the Court for alteration of the order of maintenance in view of the supervening development inasmuch the son of the parties was still residing with the respondent, whereas the appellant had left the matrimonial home.

#### The events in the trial court

9) The respondent examined PW-1, Mark Ext.PW1/A to PW1/C and P-1 to P-9, while the appellant examined RW.1 and RPW.1 and Mark Ext.RW1/A and RPW1/A. The judgment of the trial court

10) After considering the oral and documentary evidence on record, the trial Court observed that the appellant was staying separately from the respondent; that the appellant herself admitted that she was staying away from the respondent from December 2015.

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11) It also held that though the appellant contended that she had stayed away from the respondent on account of physical and mental abuse meted out to her by the respondent, no specific instances of any physical violence and verbal abuse by the respondent had been put to her in her cross-examination.

12) It also held that the appellant had not taken any steps towards seeking directions to this Court to meet her child, which only indicates the fact that her attitude was in-different not only towards the respondent but also to her child.

13) The trial Court noted that the appellant had also not led any evidence about allegation of dowry payment & maltreatment, and no independent witnesses had been examined by her in that regard.

Even her own parents did not come forward for deposing in her favour.

14) It noted that even her parents had been exhorting to join the company of the respondent, and, to end her objectionable companionship with Pooja Verma. It also noted that the appellant in cross-examination had admitted that her parents had left her at matrimonial home on 14.08.2016, but the appellant had again left the same immediately thereafter.

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15) It found that the appellant was staying with her friend Pooja Verma on the basis of the other evidence available on record. It relied on Ext. Mark-P2 which contained an admission by the said Pooja Verma that the appellant was residing with her.

16) It found that the respondent had paid maintenance @ Rs.8,000/- per month as per the orders passed by this Court in Domestic Violence proceedings, and, that he had done so with the interest of salvaging his marriage and the welfare of the child, but once the appellant left the matrimonial home leaving the child behind with the respondent, this situation altered and he thereafter moved the Court for modification of the said order.

#### The present Appeal

17) Assailing the same, this appeal is filed.

18) Learned counsel for the appellant contended that the judgment under appeal is contrary to law, evidence on record, and that the trial Court erred in allowing the application filed by the respondent for Restitution of Conjugal Rights.

#### Consideration by the Court.

19) After perusing the evidence on record and the reasons .

assigned in the impugned judgment, we find no reason to interfere with the same.

20) Admittedly, the appellant was staying away from the respondent as per the evidence on record from December 2015, and, the evidence on record also shows that she was staying with her friend Pooja Verma, and, she had left the child born to her with the respondent.

21) She had not adduced any evidence about the alleged physical violence or verbal abuse inflicted on her by her husband as alleged by her in her pleadings in the trial Court, and no specific instance of any such act on behalf of the respondent had been put to him in the cross-examination.

22) The trial Court after appreciating the evidence also records that appellant's own parents had exhorted her to resume her stay with the respondent, and, twice they left her with the respondent, but she went away and was admittedly staying with her friend Pooja Verma. The conduct of the appellant, therefore, does not entitle her to get any relief in this appeal.

23) Accordingly, the appeal is devoid of merit and is dismissed. Pending miscellaneous applications, if any, shall also stand .

disposed of.

( M.S. Ramachandra Rao )  
Chief Justice

27th March 2024 (rohit)

to

(Jyotsna Rewal Dua)  
Judge